

## 23AVCV01238 23AVCV01238

County: los-angeles

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PRINCETON LYRIC CARTER v. JOHN A. FABER et al.

Motion for Determination of Good Faith Settlement (CCP 877.6)

### DISPOSITION

Defendants John A. Faber, M.D. and Amen Clinics Los Angeles, P.C.'s motion for determination of good faith settlement is GRANTED. The settlement with plaintiff Princeton Lyric Carter, a minor appearing through his guardian ad litem, Melanie Martin, individually and as successor in interest to Aaron Charles Carter, is determined to have been made in good faith under Code of Civil Procedure section 877.6.

The determination bars any other joint tortfeasor or co-obligor from further claims against the settling defendants for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault. (Code Civ. Proc., § 877.6, subd. (c).) It does not dismiss any pleading or adjudicate claims outside that statutory scope.

The settlement remains subject to court approval of the minor's compromise. This ruling does not grant that approval or authorize distribution of the settlement proceeds.

### REASONS

This wrongful death and survival action concerns allegations that defendants negligently prescribed or dispensed controlled substances that contributed to Aaron Charles Carter's death. The settling defendants dispute negligence and causation. (Mann Decl., ¶¶ 2-3.) The court continued the motion from September 1 to September 8, 2026, and permitted supplemental evidence. (Minute Order, Sept. 1, 2026, p. 1.) The supplemental declaration now discloses the settlement amount. (Supp. Mann Decl., ¶ 4.)

In evaluating good faith, the court considers the estimated recovery and the settling parties' potential responsibility, the settlement amount and allocation, the discount appropriate to settlement, the settling defendants' financial condition and insurance, and any collusive or fraudulent conduct prejudicing nonsettling parties. The evaluation rests on information available when the settlement was reached. (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499.)

When the motion is unopposed, a brief motion stating the grounds for good faith, supported by a declaration describing the case, may suffice; a complete evidentiary presentation addressing every factor is not required. (City of Grand Terrace v.

Superior Court (1987) 192 Cal.App.3d 1251, 1261.) The party asserting lack of good faith bears the burden on that issue. (Code Civ. Proc., § 877.6, subd. (d).)

Mann declares that the parties participated in mediation on March 24, 2026, continued negotiations through the mediator, and reached a settlement on April 20, 2026. Amen Clinics' professional liability insurer agreed to pay an amount identified in Mann's supplemental declaration in exchange for dismissal with prejudice, and Faber agreed to waive recovery of costs in exchange for dismissal with prejudice. (Supp. Mann Decl., ¶ 4.) Mann further declares that he disclosed the settlement amount to counsel for the nonsettling defendants, that those defendants have not opposed the motion, and that the negotiations were at arm's length and free of collusion or fraud. (Supp. Mann Decl., ¶¶ 5-6.)

The supplemental declaration supplies the previously undisclosed monetary term. The court considers that payment obligation and Faber's cost waiver together as the settlement presented by the two moving defendants. The declarations describe the disputed liability, the settlement terms, and the circumstances of negotiation. No opposition or evidence disputing the good faith of this settlement has been submitted. On this unopposed record, the showing is sufficient to support a determination of good faith. (City of Grand Terrace, supra, 192 Cal.App.3d at p. 1261.)

The court does not adopt defendants' estimates of damages or comparative fault as factual findings or resolve the merits of the underlying negligence and causation disputes. The determination is limited to the good faith of the settlement described in Mann's supplemental declaration, with the requirement of separate minor's compromise approval preserved.

\*\*\*To submit without oral argument, all parties must follow the Department's "Submitting on a Tentative Ruling" instructions. Only one joint email may be sent. Do not telephone the courtroom. If the parties do not unanimously agree to submit, any party may appear at the scheduled hearing without advance notice.\*\*\*